

Manu Sharma v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 2 May 2023 · Writ-C No. 12534 of 2023 · **Writ disposed; final assessment to follow the Supply Code.**

HEADNOTE

A writ against a notice of provisional assessment was disposed of without interference once the consumer had filed an objection and the licensee stated that the final assessment would consider it. The Court directed that the final assessment be made strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Manu Sharma challenged a notice of provisional assessment dated 2 August 2022 issued by respondent no. 3, which gave him fifteen days to object. He filed the objection on 18 November 2022. After two adjournments for non-appearance, the Allahabad High Court on 26 April 2023 allowed three days to serve the panel lawyer of Paschimanchal Vidyut Vitran Nigam Limited. On 2 May 2023 counsel for the electricity department stated that the final assessment would be passed after considering the objection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::final-assessment-procedure

Final assessment after a provisional assessment notice

HOLDING

Where the consumer has already objected to a notice of provisional assessment and the licensee states that the final assessment will consider that objection, no case is made out for interference with the notice. The writ is disposed of by directing that the final assessment be made strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. ¶ 4

FLAG Order names the Electricity Supply Code, 2005, and does not number a clause.

PRINCIPLE TAGS

final-assessment-in-accordance-with-supply-code The Court left the provisional assessment notice standing and disposed of the writ by requiring the final assessment to follow the Supply Code procedure and to take the filed objection into account. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS AND QUANTUM OF THE PROVISIONAL ASSESSMENT DATED 2 AUGUST 2022 AND OF THE OBJECTION DATED 18 NOVEMBER 2022

Left to the final assessment under the Supply Code procedure. ¶ 4